ORDINANACE NO. 566

AN ORDINANCE CALLING FOR A SPECIAL ELECTION TO PROPOSE TO THE VOTERS STAGGERED FOUR YEAR TERMS FOR ALDERMEN; AND TO DECLARE AN EMERGENCY AND FOR OTHER PURPOSES

WHEREAS, Arkansas Code Annotated §14-44-103 sets out the procedure for election of aldermen in cities of the second class; and

WHEREAS, an aldermen are currently elected every two years pursuant to Arkansas statutes; and

WHEREAS, the City Council previously established wards and required that aldermen reside in the ward for which they seek to be elected. The ordinance provided that each aldermen shall run for election at large such that all of the qualified electors of the City of Rector shall be entitled to vote in the elections; and

WHEREAS, the Legislature, in 2003, adopted Act 328, which is now codified in Ark. Code Ann. § 14-44-103, and provides that the city council of a city of the second class may refer to voters an ordinance on the questions of electing two aldermen for each ward to staggered four year terms.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL FOR THE CITY OF RECTOR, ARKANSAS:

SECTION 1. Consistent with Ark. Code Ann. § 14-44-103, the City Council hereby calls for a special election to be held on **Tuesday, November 6th, 2018,** which election shall be held consistent with the laws of the State of Arkansas and the solitary question to be presented to the voters at that election is whether the City of Rector will elect its aldermen to staggered four year terms beginning with the general election to be held in November, 2022.

SECTION 2. The initial term for the aldermen designated as Ward Position No. 1 (East and West) shall be a four-year term at the general election to be held in 2020. The initial term for the aldermen designated as Ward Position No. 2 (East and West) of the ward shall be a two-year term at the general election to be held in November 2020 and, thereafter, shall be a four year term beginning with the election to be held in November 2020.

SECTION 3. The City Council of the City of Rector hereby requests and directs that the County clerk and the County Election Commission place the following language on the ballot at the above-referenced special election:

CHANGING THE TERMS OF ALDERMEN IN THE CITY OF RECTOR ARKANSAS FROM TWO-YEAR TERMS TO STAGGERED FOUR-YEAR TERMS

The questions of changing the terms of aldermen who make up the City Council of City of Rector from two-year to staggered four-year terms. Currently aldermen for each ward in the City of Rector are elected to two-year terms. If this question is approved, aldermen for Ward Position One (East and West) in the ward would be elected to a four-year term at the 2020 general election and those aldermen for Ward Position Two (East and West) would be elected to a two-year term in the City of Rector general election, but would be elected to a four year term starting in the 2022 general election. If this question is approved, half of the City Council positions would be open for election for every general election after 2020. If this question is not approved, all of the aldermen positions for the City of Rector will be open for election every two years at the general election.

☑ **FOR** changing the terms of aldermen in the City of Rector from two-year terms to staggered four-year terms.

☐ **AGAINST** changing the terms of aldermen in the City of Rector from two-year terms to staggered four-year terms.

SECTION 5. That a copy of this Ordinance shall be given to the Clay County Board of Election Commissioners and the Clay County Clerk for consideration in the 2018 General Election.

SECTION 6. That all ordinances and parts of ordinances thereof in conflict herewith are hereby repealed to the extent of such conflict.

SECTION 7. Section 2 of this ordinance shall only be effective upon approval by a majority of the voters of the City of Rector who cast their ballot at the general election on Tuesday, November 6, 2018. If the majority of those voting at the special election vote against this proposal, Section 2 of this ordinance shall be null and void.

SECTION 8. EMERGENCY CLAUSE: It is hereby declared that based on the conditions set forth herein, an emergency exists and this Ordinance, being necessary for the immediate protection of the health, safety, and welfare of the Citizens of Rector, Arkansas, shall be in effect immediately upon its passage, approval, and publication.

PASSED AND APPROVED this 7th day of May, 2018

Teresa L. Roofe

Teresa Roofe, Mayor

ATTEST

Shelia Dale

Shelia Dale, City Recorder

APPROVED AS TO FORM:

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Kimberly Dale, City Attorney

ROLL CALL

Names of those voting YEA	Names of those Voting NAY
David Romine	
Ryan Lawrence	
Mark Sigsby	
Iva Fahr	